09:00 AM

25-CIV-02045 NIZAR SHEHADEH VS. LUCID GROUP USA, INC.

LINE 5

NIZAR SHEHADEH	ASHLEY J. YADDGO
LUCID GROUP USA, INC.	AMY MACLEAR

PLAINTIFF NIZAR SHEHADEH'S MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

Plaintiff Nizar Shehadeh's Motion for Attorney Fees, Costs, and Expenses, is GRANTED-in-part, as follows:

Reasonableness of Fees

A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code section 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.)

Plaintiff requests a lodestar fee award of $21,912.50 and an additional $4,658.86 for time spent reviewing the Opposition, preparing the Reply, and anticipated time to appear at the hearing. (Cline Decl., ¶3; Johnson Decl. ISO Reply, ¶7.) This represents 36.8 hours of attorney and staff time expended at hourly rates varying from $275 to $800. (Cline Decl., ¶7, Exh. 2.) Plaintiff presents evidence that the rates charged by each billing attorney are comparable those of similar experience levels in other Song-Beverly cases in the region and that similar rates have been approved in the past. (*Id*., at ¶¶12-30.) Plaintiff's evidence is sufficient to show that the rates charged are the prevailing rate in the community for similar work by attorneys of comparable skill, experience, and reputation.

Defendant argues that fee rates should be reduced to a blended rate of $350. (Opp. at p. 2:26 – 4:2.) However, most of the cases Defendants point to are from 2021 or older, are federal cases, and are not specific to this community. Defendants therefore have not rebutted Plaintiff's evidence that the rates charged are comparable those of similar experience levels in other Song-Beverly cases in the region.

Defendant next argues that Plaintiff's request contains inflated hours, based on improperly billing for clerical work disguised by block billing. For example, Plaintiff's paralegal billed .3 hours on March 24, 2025 to: "Receive and review court returned documents. Update file and notify attorney re: same. Review register of actions and update calendar. Notes to file re: same." (Cline Decl., ¶7, Exh. 2.) Defendant objects to this entry as clerical work billed as "0.3 hours for, in part, calendaring dates." The clerical element of updating the calendar that is noted within this work is minimal relative to the substantive work of reviewing documents and adding notes to the file, and therefore likely falls within a minimum increment of .1 billable hours. This does not warrant a reduction in the time billed. The same is true of the other objections for clerical work.

Defendant also objects to 8.3 hours billed throughout the case for, at least in part, legal research, arguing that it is unclear how it was necessary or useful here. (Opp. at p. 6:13-18.) This is a speculative objection that second guesses the method by which counsel achieved a successful prosecution of Plaintiff's action without evidence that the time billed was unnecessary. A key issue in the case was the legal adequacy of Defendant's initial 998 offer to compromise, which was ultimately adjusted in Plaintiff's favor, and several legal research entries pertain to that issue. (Cline Decl., ¶7, Exh. 2.) Finally, Defendant objects to fee on fee billing, arguing that litigation over fees is not in the public interest. However, Plaintiff is not solely responsible for litigation over fees. Agreement could have been reached in lieu of litigation, and Defendant has opposed each element of Plaintiff's fees without making a strong showing for a reduction in the amount. There is no basis to restrict recovery for time necessarily billed in the recovery of fees.

Plaintiff's lodestar fee request is therefore reasonable in amount.

Multiplier

The amount of attorney fees awarded pursuant to the lodestar adjustment method may be either increased or decreased. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5 240, 247.) Factors to be considered include novelty of the issues involved, skill displayed in presenting the case and quality of representation, extent to which the case precluded other work, contingent nature of the award, and quality of results obtained. (See *Cates v. Chiang* (2013) 213 Cal.App.4th 791; *Rey v. Madera Unified School Dist*. (2012) 203 Cal.App.4th 1223; *Thayer v. Wells Fargo Bank, N.A*. (2001) 92 Cal.App.4th 819.)

Here, Plaintiff achieved a fairly strong result in the form of a $77,877.72 judgment, demonstrating skill and quality in the representation he received. However, there is limited evidence of novel issues being presented with respect to the adequacy of Defendant's initial and updated 998 offers. The case required only limited, intermittent billing, and there is no evidence that other case work was precluded. The action was taken on a contingency basis, but it received a relatively quick buy-back offer, and most of the work necessitated was in seeking a somewhat limited adjustment to that offer, demonstrating that the likelihood of recovery was apparent from an early stage. On these facts, no adjustment to the lodestar amount is warranted.

Costs

The usual method to recover costs as a prevailing party is by filing a Memorandum of Costs pursuant to Cal. Rules of Court, rule 3.1700. Plaintiff's Memorandum of Costs filed October 30, 2025 requests $611.13 in costs, consisting of $559.50 in filing fees and $51.63 for service of process costs. Plaintiff's Reply brief is supported by evidence that additional costs in the amount of $388.86 were incurred in filing the present Motion. (Johnson Decl. ISO Reply, at ¶4.) These fees appear reasonable in amount and to have been necessarily incurred in the prosecution of the action, and amount to $388.86 +$611.13 = $999.99 in total costs. However, Plaintiff's requested award seeks a total of $634.76 in "Statutory Costs and Expenses." (Reply, at p. 8:10.) Costs are therefore awarded in that lesser amount.

The Motion is accordingly GRANTED-in-part in the amount of $21,912.50 in lodestar attorney fees, $634.76 in costs, and $4,658.86 in fees for the Reply briefing and estimated time at the hearing for a total awarded of **$27,206.12.**

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM
25-CIV-08977 ADEM MUSSA VS. ARTICHOKE JOE'S
LINE 6

ADEM MUSSA	PRO PER
ARTICHOKE JOE'S	JAMES M. WAGSTAFFE

DEFENDANT: ARTICHOKE JOE'S DEMURRER TO COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Artichoke Joe's unopposed demurrer to Plaintiff Adem Mussa Nov. 24, 2025 Complaint is SUSTAINED WITH LEAVE TO AMEND as to the First, Third, Fourth, and Fifth Causes of Action. (Code Civ. Proc. § 430.10(e).)

Demurrer Analysis

The demurrer to the First Cause of Action (breach of contract) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal. App. 4th 1182, 1186.)

When the contract is oral, the plaintiff must plead the substance of the agreement and its relevant terms. Although plaintiff need not plead every detail, here, the nature of the alleged oral agreement is extremely unclear/vague. The Complaint alleges that on Dec. 6, 2024, the parties entered into an oral agreement, pursuant to which "defendant would pay plaintiff money won playing card games and money deposited." It further alleges that on Dec. 5, 2024 and Dec. 6, 2024, defendant breached the agreement "by not returning money deposited by plaintiff."

First, the allegation that the parties formed an oral contract are limited and very unclear. There are no facts explaining how defendant expressed its agreement/assent (who agree to the terms), no facts explaining what plaintiff means by having "deposited" money with the defendant, and no facts explaining what defendant orally agreed to do. For example, did defendant allegedly promise to return cash that plaintiff gave to defendant? Did Plaintiff deposit chips with defendant?

Further, the alleged breach on Dec. 5, 2024 is an impossibility. Defendant could not have breached an agreement on Dec. 5, 2024 if the contract did not come into existence until Dec. 6, 2024 as alleged.

The demurrer to the Third Cause of Action (fraud) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) The Complaint purports to allege a fraud cause of action in the form of both (a) a false promise; and (b) a misrepresentation. Fraud, however, must be plead with specificity. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) "General and conclusory allegations" do not suffice. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.780, 792.) Where the fraud is based on an alleged misrepresentation or a false promise, the specificity requirement means plaintiff must allege facts showing how, when, where, to whom, and by what means the false promise or representation was made. (*Id.* at 793.)